

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Date Purchased:

YAMRICK PARKER,

Plaintiff,

-against-

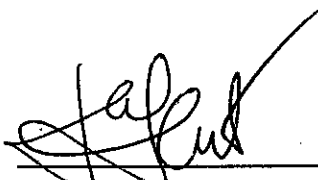
SUMMONS

Plaintiff designates
BRONX County as the
place of trialCITY OF NEW YORK, Sgt. ANGEL GONZALEZ, P.O.
RANDY BAUTISTA and OFFICER[S] JOHN AND
JAMES DOE, names being fictitious and meant to
designate additional offending officers,
Defendants.The basis of venue is:
CPLR 504 (3)**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

April 11, 2016


By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007Sgt. Angel Gonzalez, Shield No. 4646 and P.O. Randy Bautista, Shield No. 10758
46th Precinct, 2120 Ryer Avenue Bronx, NY 10457BRONX COUNTY
COUNTY CLERK

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
YAMRICK PARKER,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, Sgt. ANGEL GONZALEZ,
P.O. RANDY BAUTISTA and OFFICER[S] JOHN AND
JAMES DOE, names being fictitious and meant to designate
additional offending officers,

Defendants.
-----X

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,

respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF YAMRICK PARKER

1. At the time of the commencement of this action, plaintiff YAMRICK PARKER

was and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and

State of New York.

3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about January 21, 2015 , Sgt. ANGEL GONZALEZ was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about January 21, 2015, at approximately 8 P.M., Sgt. ANGEL GONZALEZ was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about January 21, 2015 , P.O. RANDY BAUTISTA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
8. That on and about January 21, 2015, at approximately 8 P.M., P.O. RANDY BAUTISTA was working and acting within the scope of his employment as a Police Officer, and under the color of law.
9. That on and about January 21, 2015 , OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

10. That on and about January 21, 2015 at approximately 8:15 P.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

11. That on or about January 21, 2015 at approximately 8 P.M., plaintiff YAMRICK PARKER was lawfully present inside of the lobby of 333 East 181st Street, Bronx, New York.

12. That immediately prior thereto, Plaintiff and a friend were visiting with a acquaintance, Kamel Warren, who resides at 333 East 181st Street, Bronx, New York, and upon leaving the apartment of Kamel Warren, encountered Sgt. ANGEL GONZALEZ and P.O. RANDY BAUTISTA in the lobby of 333 East 181st Street, Bronx, New York.

13. That Plaintiff is african American.

14. That Sgt. ANGEL GONZALEZ and P.O. RANDY BAUTISTA approached and questioned plaintiff YAMRICK PARKER, Kamel Warren and Jerril Shepherd, who had prior thereto exhibited no suspicious behaviors, based solely upon their age, the color of their skin, and their mere presence at 333 East 181st Street, Bronx, New York.

15. That Sgt. ANGEL GONZALEZ stopped plaintiff YAMRICK PARKER without legal authority or justification, and questioned him unlawfully.

16. That plaintiff YAMRICK PARKER and his acquaintance, one of whom lived in that very building, presented their identifications to Sgt. ANGEL GONZALEZ and P.O. RANDY BAUTISTA, and asked Sgt. ANGEL GONZALEZ, in sum and substance, "why are you always harassing us", to which Sgt. ANGEL GONZALEZ replied, " shut the f*** up, we can do what we want".

17. That thereafter, and without legal authority or justification, Sgt. ANGEL GONZALEZ searched the person of plaintiff YAMRICK PARKER.

18. That on or about January 21, 2015 at approximately 8 P.M., inside of the lobby of 333 East 181st Street, Bronx, New York, the plaintiff YAMRICK PARKER was improperly detained, searched and confined without warrant, proper authority, privilege or justification, having no reason in law or in fact to detain or confine the plaintiff YAMRICK PARKER.

19. That the defendants, their agents, servants and/or employees detained and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

20. That the defendants, their agents, servants and/or employees willfully and unlawfully detained, imprisoned and searched the plaintiff and took his property

without any basis in law or fact, and plaintiff being aware of his unlawful confinement was thereby caused fright, shock, emotional distress and physical consequences.

21. That following his initial detention at the aforesaid location plaintiff was transported by the Defendants to the 46th Precinct, 2120 Ryer Avenue Bronx, NY, and thereat, was invasively searched by OFFICER JOHN DOE, whose actual name is presently unknowable by plaintiff but necessarily known by Defendants, without a reasonable articulable suspicion that he was secreting evidence under his clothes or within a bodily cavity.

22. That the defendants, their agents, servants and/or employees continued to unlawfully detain the plaintiff YAMRICK PARKER at the 46th Precinct for a number of hours, without any basis in law or fact.

23. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of stopping, questioning, detaining and searching innocent persons, primarily of young male minority populations without reasonable suspicions, and engaging in a policy and procedure known a 'Stop, Question and Frisk', without any probable cause or reasonable basis to do so for nefarious, unlawful reasons such as the subjugation of minority population, without reprimand to the offending officers.

24. That said illegal and unlawful stops, questioning, detainments and searches without reasonable or probable cause are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein.

25. That said unlawful, unconstitutional policy and practice was detailed in the action Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, where it was determined that said policy violated the constitutional rights of hundreds of thousands of innocent minority males within the CITY OF NEW YORK.

26. Moreover, patterns of such wrongful 'stop and frisk' arrests, as detailed in the Floyd, et al. v. City of New York, et al. litigation, is additionally demonstrated by the wrongful stop and frisk and strip search of DEVON JOHNSON on January 30, 2012 in front of 315 East 143rd Street, Bronx, New York; and DANIEL AGUERO February 9, 2011, at the corner of East 171st Street and Grand Concourse, who was subsequently wrongfully strip searched at the 44th Precinct; and ORLANDO GONZALEZ on April 8, 2011, in front of 2717 Decatur Avenue, Bronx, New York who was subsequently wrongfully strip searched at the local precinct, and a significant number of other

similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OR NEW YORK agencies and departments, and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the detailed statistical data and analysis presented against the CITY OF NEW YORK in the Floyd action and in claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OR NEW YORK agencies and departments.

27. Further, officers of the New York City Police Department, and especially and specifically officers of the 46th Precinct routinely engage in the use of practices such as illegal, unlawful and unnecessary strip searches and anal cavity searches without individualized reasonable suspicion of the secreting of evidence inside a bodily cavity in order to degrade, humiliate and subjugate persons, without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein even though these occurrences are well known and almost routine, and evidenced by the multitude of actions brought in state and federal courts

and complaints made to the Civilian Complaint Review Board and the Bureau of Internal Affairs.

28. Furthermore patterns of wrongful strip searches conducted without a reasonable articulable suspicion that the searched person was secreting evidence within a bodily cavity has occurred to such individuals such as, for instance, KAISON SHAW on February 20, 2009 at the 46th Precinct; SHARON GUILLEBEAU on August 18, 2009 and again on September 23, 2009 at the 46th Precinct; DAVID PALUZZI on or about April 25, 2010 at the 46th Precinct; JEFFREY JACKSON on or about November 12, 2010; WILLIE REEVES on December 15, 2010 and February 18, 2011 at the 46th Precinct; KAMAMA COLEMAN at the 46th Precinct on April 6, 2011; JOSE SOSA on May 19, 2011 at the 46th Precinct; to plaintiff YAMRICK PARKER himself at the 46th Precinct on February 5, 2011; CARLOS ACOSTA at the 46th Precinct on or about November 29, 2012; MILTON CHAVIS at the 46th Precinct on MAY 5, 2012, and is well evidenced by the May 14, 2004 letter by the Civilian Complaint Review Board with attachments to Police Commissioner Raymond Kelly, detailing the NYPD policy of illegal strip searched by their officers, a copy of which is available to the public at <http://www.nyc.gov/html/ccrb/downloads/pdf/stripsearchletter.pdf>, and as evidenced by

the above and within individuals and countless others demonstrates that said practices continue unabated.

29. The herein above described actions and omissions, engaged in under the color of law by the defendants, including the named defendants supervisors and commanders and the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his property and person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

30. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

31. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

32. That as a result of the foregoing, the plaintiff YAMRICK PARKER was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF YAMRICK PARKER

33. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 32 as though more fully set forth herein.

34. That on November 19, 2015 and pursuant to the So-Ordered Stipulation of Justice Mitchell J. Danziger of the Bronx County Supreme Court under Index No. 260892/15, plaintiff caused a Notice of Claim, deemed timely, nunc pro tunc, by said Order, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, by presenting a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant.

35. The aforesaid Order, dated November 19, 2015 specifically directed the CITY OF NEW YORK to deliver to plaintiff a Notice of a General Municipal Law §50h hearing within thirty [30] days of the date of said Order.

36. The CITY OF NEW YORK failed or neglected to Notice the plaintiff of any such hearing within said time period, and in fact failed or neglected to Notice the plaintiff of any such hearing up through the present date.

37. Having failed or neglected to Notice, request or schedule a General Municipal Law §50h hearing of plaintiff, the necessity of said hearing as a prerequisite to commencing the within action is necessarily waived by the CITY OF NEW YORK.

38. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

39. That on or about January 21, 2015 at approximately 8 P.M., inside of the lobby of 333 East 181st Street, Bronx, New York, the plaintiff YAMRICK PARKER was improperly stopped, detained, confined, questioned and searched without warrant, proper authority, privilege or justification, having no reason in law or in fact to stop, detain, confine, question or search plaintiff YAMRICK PARKER.

40. That the defendants, their agents, servants and/or employees stopped, detained, confined, questioned and searched the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

41. That the defendants, their agents, servants and/or employees willfully and unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement was thereby caused fright, shock, emotional distress and physical consequences.

42. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

43. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

44. That as a result of the foregoing, the plaintiff YAMRICK PARKER was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF YAMRICK PARKER

45. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 44 as though more fully set forth herein.

46. That during aforementioned arrest the defendants, their agents, servants and/or employees employed and utilized unreasonable and invasive search methods and procedures upon the plaintiff, including body cavity search without individualized articulable reasonable suspicion of the secreting of evidence.

47. That said invasive strip search, which constituted an assault and battery, did cause plaintiff fright, shock, emotional distress and physical consequences.

48. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

49. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

50. That as a result of the foregoing, the plaintiff YAMRICK PARKER was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FORTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF YAMRICK PARKER

51. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 50 as though more fully set forth herein.

52. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

53. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper conducting of stops, questioning, detaining without legal authority or justification and subsequent searching of individuals without a reasonable articulable suspicion of the secreting of evidence within a bodily cavity.

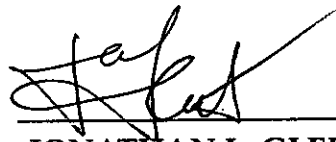
54. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, plaintiff YAMRICK PARKER was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be

prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

55. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second, Third and Forth Causes of Action inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
April 11, 2016


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff
YAMRICK PARKER

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

Sgt. Angel Gonzalez, Shield No. 4646 and P.O. Randy Bautista, Shield No. 10758
46th Precinct, 2120 Ryer Avenue Bronx, NY 10457

PLAINTIFF'S VERIFICATION

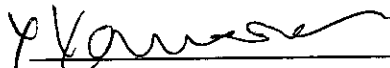
YAMRICK PARKER, affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


YAMRICK PARKER